

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

DILLON BRADLEY,
Plaintiff,

v.

MBVJ HESPERIA HOTELS, LLC; G6
HOSPITALITY LLC,
Defendants.

Case No.: CIVSB2425292

**[TENTATIVE] ORDER
GRANTING MOTION FOR A
PROTECTIVE ORDER RE: NON-
RETAINED HEALTHCARE
PROVIDER EXPERTS, FILED BY
DEFENDANTS**

I. INTRODUCTION

This is a personal injury litigation arising from third-party criminal conduct. On August 14, 2024, Plaintiff Dillon Bradley filed his Complaint against Defendants MBVJ Hesperia Hotels, LLC and G6 Hospitality LLC. The Complaint pleads 3 causes of action: (1) negligence, (2) premises liability, and (3) negligent security. Defendants answered.

The Complaint alleges that Bradley was a guest at the Motel 6 at 9757 Catapa Rd., Hesperia, which is owned and operated by MBVJ. On May 8, 2024, while Bradley was in the laundry room, he was attacked with a crowbar by 2 individuals who gained entry through an

unsecured and broken perimeter door (¶¶ 3-4, 8, 12, 20-22). Defendant G6 is the franchisor of Motel 6 (¶¶ 6, 13).

A. Depositions

Before the trial date was continued, the parties exchanged expert witness lists. Plaintiff designated 30 non-retained treating physicians. Defendants MBVJ and G6 sought to depose some of these experts, including Serina Hoover, Psy.D. After they served their Notice of Deposition, Plaintiff Bradley served his own Notice of Deposition for Dr. Hoover, which indicated that the deposition would be videotaped and used for trial in lieu of live testimony. Defendants objected to this procedure. (Goldberg Decl. at ¶¶ 3-4, 7-9, Exhs. B-D.)

Defendants MBVJ and G6 now move for a protective order postponing any recorded depositions of the non-retained physicians. Plaintiff Bradley opposes. Defendants reply. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.¹

II. APPLICABLE LAW

A. Protective Orders Generally

Any party or deponent may move for a protective order before, during, or after a deposition. (Code Civ. Proc., § 2025.420, subd. (a).) For good cause, the court may make any order to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (Code Civ. Proc., §§ 2017.020, subd. (a), 2025.420, subd. (b).) The moving party bears the burden of establishing good cause. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.)

¹ The Court finds that the moving party has complied with its meet-and-confer obligation. (Goldberg Decl. at ¶¶ 11-14, Exh. E-G; Kitsinian Decl. at ¶ 6, Exh. E.)

The issued protective order may include several different directives, including that the deposition is not taken, that certain matters are not inquired into, and that the scope of the examination is limited to certain matters. (Code Civ. Proc., § 2025.420, subd. (b).) If the motion is denied, then the Court may order that the responding party provide or permit the discovery on terms and conditions that are just. (Code Civ. Proc., §§ 2025.420, subd. (g).) The issuance and formation of protective orders are largely discretionary. (*Raymond Handling Concepts Corp. v. Superior Court (Zuelzke)* (1995) 39 Cal.App.4th 584, 588.)

B. Video Recording of a Deposition

Instead of live testimony of a treating or consulting physician or expert witness, either party may use a video recording of the deposition testimony if the deposition notice reserved the right to use the deposition at the trial per Code of Civil Procedure section 2025.220, and if the party complied with section 2025.340, subdivision (m). (Code Civ. Proc., § 2025.620, subd. (d).)

Section 2025.420, subdivision (b)(3), provides that one of the directives proper under a protective order is “[t]hat a video recording of the deposition testimony of a treating or consulting physician or of any expert witness, intended for possible use at trial under subdivision (d) of Section 2025.620, be postponed until the moving party has had an adequate opportunity to prepare, by discovery deposition of the deponent, or other means, for cross-examination.”

III. WHY THE MOTION SHOULD BE GRANTED

Defendants argue that they are entitled to a discovery deposition of the non-retained treating doctors before Plaintiff deposes them on video for use at trial. Plaintiff argues that nothing in this provision allows for a witness to be deposed twice; this statute only means that the opposing party must be given sufficient time to prepare for the deposition before it is taken.

Under section 2025.420, subdivision (b)(3), a party may seek a protective order to ensure adequate preparation time before a video deposition is taken for use at trial. The additional language — “by discovery deposition of the deponent” — plainly means a non-recorded, pre-trial deposition of the witness.

The California Judge Benchbook on Civil Discovery Proceedings indicates that an opposing party must be given time to prepare for the cross-examination of an expert on a video recording, and this may call for special measures, including taking the deponent’s unrecorded deposition before the video-recorded deposition. (Exh. H to Goldberg’s Decl.) It notes section 2025.420, subdivision (b)(3), expressly permits the postponement of a video-recording deposition under such circumstances.

The California Practice Guide: Personal Injury notes that after receiving notice that an expert or treating/consulting physician’s deposition will be video recorded and possibly used for trial, the opposing party is entitled to seek a protective order to allow it time to prepare for cross-examination of that expert. (Exh. I [¶ 8:280.5] to Goldberg’s Decl.) The treatise explains that “discovery deposition” refers to a preparatory, unrecorded deposition designed to ensure the opposing party learns the witness’s testimony prior to trial. (Exh. I [¶ 8:280.6] to Goldberg’s Decl.)

Finally, the California Practice Guide: Civil Procedure Before Trial indicates that a protective order is available to postpone a video recording of an expert witness’ testimony that may be used at trial in lieu of live testimony to allow the opposing party “time to prepare for cross-examining the expert (including taking the expert’s deposition, if necessary)[.]” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:677, p. 8E-100-01.)

Contrary to Plaintiff's position, a plain reading of the statute, as supported by various treatises, is that an opposing side may take a non-recorded deposition of a treating or consulting physician and designated expert witness before the trial-ready deposition is taken and recorded. Thus, Defendants are entitled to a protective order precluding any recording of treating or consulting physicians' depositions until after Defendants have had a reasonable opportunity to prepare, including taking the physicians' deposition.

IV. CONCLUSION

1. Defendants MBVJ and G6's Motion for a Protective Order is GRANTED. Any recorded deposition of a non-retained treating or consulting physician expert for which the right to use at trial has been reserved is postponed until after Defendants have had the opportunity to conduct a non-recorded deposition or other means to prepare for cross-examination.

2. Because Defendants' motion is granted, Plaintiff's request for opposing sanctions is DENIED.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

HUAFU ZHANG,

Plaintiff,

v.

GUZMAN GRADING AND PAVING CORP.;
HERIBERTO QUINONEZ; and DOES 1 to 25,

Defendants.

Case No.: CIVSB2411524

**[TENTATIVE] ORDER DENYING
MOTION FOR
RECONSIDERATION**

V. INTRODUCTION

In this motor vehicle accident litigation, Plaintiff Hua fu Zhang moves for reconsideration of the Court's order granting monetary sanctions on Defendants' motion to quash subpoenas.

On April 15, 2024, Plaintiff Hua fu Zhang ("Plaintiff" or "Zhang") filed a Judicial Council form Complaint against Defendants Guzman Grading and Paving Corp. ("Guzman") and Heriberto Quinonez ("Quinonez," collectively "Defendants"). The form Complaint fails to

include any attached cause of action, but Defendants' liability is marked as based on negligence and motor vehicle liability.

Defendant Guzman answered on May 30, 2024, asserting a general denial and ten (10) affirmative defenses. Defendant Quinonez answered on September 19, 2024, asserting a general denial and ten (10) affirmative defenses.

On November 14, 2025, Defendants moved to quash the Plaintiff's subpoena for production of business records and for sanctions.

After opposition and reply, the Court on January 28, 2026, granted the motion to quash the subpoena in part and awarded Defendants sanctions. The decision stated in part:

Defendants request sanctions. Considering the majority of the subpoenas sought irrelevant and private material and were overbroad, the Court finds that sanctions are warranted. The Court finds that attorney Popkowski's hourly rate of \$235 and the amount of time billed [for] the defense's motion practice, a total of 9.5 hours, are reasonable. Accordingly, the Court awards sanctions in the amount of \$2,232.50.

Defendants filed a notice of ruling on January 29, 2026, which was served by electronic mail that day.

On February 9, 2026, Plaintiff filed this present motion for reconsideration. On July 22, 2026, Defendants filed an opposition to this present motion for reconsideration. On August 13, 2026, Plaintiff filed a reply to the motion for reconsideration. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

VI. APPLICABLE LAW

Code of Civil Procedure, section 1008, subdivision (e), states "[t]his section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is

interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section.”

Section 1008 governs all motions for reconsideration, whether brought by a party or *sua sponte* by the court. (*Morite of California v. Superior Ct.* (1993) 19 Cal.App.4th 485, 490.)

However, more recent decisions have held that, based on the separation of powers doctrine, the procedural restrictions of section 1008 cannot deprive the trial court of jurisdiction to reconsider its own interim orders *sua sponte*. (*Kerns v. CSA Ins. Group* (2003) 106 Cal.App.4th 368.)

A motion for reconsideration must be (1) brought before the same judge that made the order, (2) made within 10 days after service upon the party of notice of entry of the order, and (3) be based on new or different facts, circumstances, or law than those before the court at the time of the original ruling. Additionally, the motion must be supported by a declaration identifying the previous order, identifying the judge that made the order, and identifying the new or different facts, circumstances, or law claimed to exist. (Code Civ. Proc., § 1008, subd. (a).) The moving party must offer the court some fact, law, or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) Even if reconsideration is granted, the court may simply reaffirm its original order. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 202.) Motions for reconsideration cannot be based on an argument the court misinterpreted the law or failed or refused to consider evidence previously presented in its prior ruling. (*Gilberd, supra*, 32 Cal.App.4th at p. 1500.)

VII. WHY THE MOTION SHOULD BE DENIED

Although Plaintiff timely filed this motion before the issuing judge, he presents no new facts, circumstances, or law to warrant reconsideration. [*Morris v. AGFA Corp.* (2006) 144 CA4th 1452, 1460; *Hennigan v. White* (2011) 199 CA4th 395, 406.] The original motion

requested sanctions and the time spent and included the declaration of Adam Popkowski, Esq. which stated the following at ¶ 6:

6. In pursuing the instant motion, attorneys at my office have spent more than 6 hours attempting to meet and confer, drafting the objections, and drafting and finalizing the motion and supporting papers. I expect to spend another 3.5 hours drafting any reply that might be necessitated and appearing at the hearing of this motion. Based on a billing rate of \$ 235 per hour, my office's lowest rate for these types of cases, defendants request that requests plaintiff be ordered to pay monetary sanctions in the sum of \$2,232.

Plaintiff's counsel admits he did not scrutinize Defendant's argument and was convinced the Court would not award sanctions:

In light of California's liberal approach in civil discovery favoring the disclosure of potentially relevant information, Plaintiff was convinced that the court would not impose any sanctions even if he was casting a wide net in discovery in accordance with the long-standing policy favoring disclosure. As a result, he did not scrutinize Defendant's argument or evidence seeking sanctions even though there appears to be apparent flaws.

(Motion at p. 6 of 8 at line: 8-12.)

Moreover, counsel's mistake based on ignorance of the law is not a proper basis for reconsideration. [*Pazderka v. Caballeros Dimas Alang, Inc.* (1998) 62 CA4th 658, 670]. This appears to be the situation here. There is nothing new presented. Counsel could have argued this point earlier, and being "convinced" or failing to "scrutinize" is not a sufficient basis for this motion. His ignorance or lack of diligence is not sufficient for a motion for reconsideration.

Finally, reconsideration cannot be granted based on claims the court misinterpreted the law in its initial ruling (as opposed to a change in the law in the interim). That is not a "new" or "different" matter. [*Gilberd v. AC Transit* (1995) 32 CA4th 1494, 1500, 38 CR2d 626, 630].

Since there are no new or different facts or circumstances, Plaintiff could have made his arguments previously and chose not to, and the law has not changed.²

² Nothing in Code Civ. Proc., §1987.2, the statute authorizing sanctions in connection with a discovery motion, states that time for meeting and conferring is not
(footnote cont'd on next page)

VIII. CONCLUSION

The motion for reconsideration is DENIED. Plaintiff has not met the requirements of “new or different facts, circumstances, or law.” Plaintiff has not provided a satisfactory explanation for failing to present the information or argument at the first hearing.³

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

recoverable as an attorney fee. Plaintiff has cited no authority for his claim that the time spent engaging in meet and confer correspondence is not “reasonable.” In any event, such correspondence is particularly reasonable given that it was an attempt to avoid having to expend additional time on the motion to quash and expedited the drafting of the motion to quash. The Courts want to encourage parties to settle their difference without resorting to motion practice.

³ The Court exercises discretion to decline to award sanctions pursuant to Code Civ. Proc., § 1008, subd. (d), against Plaintiff for making this motion.